

**JUSTIFICATION AND APPROVAL
OTHER THAN FULL AND OPEN COMPETITION**

1. Identification of the agency and the contracting activity.

This justification is executed by the Naval Medical Research Command (NMRC), Silver Spring, MD, on behalf of the Navy to meet Navy Expeditionary Medical Research requirements. The contracting activity will be a preventative maintenance contract for our flow cytometer equipment, provided by the Life Technologies Corporation.

2. Nature and/or description of the action.

The proposed action is to re-apply for a preventative maintenance contract for two machines in our lab. As outlined in the "AB Assurance Plan" provided by Life Technologies Corporation (a company acquired by ThermoFisher Scientific), this contract will allow for preventative (planned) and unplanned service calls. These visits will be in service of a flow cytometry apparatus consisting of a Cytokick autosampler SN: 2AAS405060621 and Attune NxT 4 laser Flow Cytometer SN: 2AFC234670621, which are needed when performing certain cell-based assays. The proposed source is Life Technologies Corporation, 5781 Van Allen Way, Carlsbad, CA 92008.

3. Description of Supplies or Services:

NMRC Infectious Disease Directorate's (IDD) lab needs to re-apply for a preventative maintenance contract for the lab's flow cytometer apparatus. This apparatus consists of Cytokick autosampler and Attune NxT 4 laser Flow Cytometer. [REDACTED]

Base year:

The services offered in this contract will extend from 06/17/2025 to 06/16/2026 for the base year with four additional option years offered. [REDACTED]

Option Year 1:

The services offered in this contract will extend from 06/17/2026 to 06/16/2027. [REDACTED]

[REDACTED]

Option Year 2:

The services offered in this contract will extend from 06/17/2027 to 06/16/2028. [REDACTED]

[REDACTED]

Option Year 3:

The services offered in this contract will extend from 06/17/2028 to 06/16/2029. [REDACTED]

[REDACTED]

Option Year 4:

The services offered in this contract will extend from 06/17/2029 to 06/16/2030. [REDACTED]

[REDACTED]

4. Identification of the statutory exceptions permitting other than full and open competition.

The statutory exception permitting other than full and open competition for this acquisition is 10 U.S.C. 2304(c)(1) and FAR 6.302-1 sole source (including brand name) acquisitions or FAR 13.106-1(b)(1) soliciting from a single source.

5. Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

The Cytokick autosampler and Attune NxT 4 laser Flow Cytometer are both products of ThermoFisher Scientific's Attune line. ThermoFisher Scientific's Life Technologies is the inventor and manufacturer of these machines. According to the Sole Source Justification, Life Technologies is the only company that can repair and perform maintenance services on both machines.

6. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable.

With ThermoFisher Scientific's Life Technologies Corporation being the manufacturer of these products, and given that they provided NMRC with a sole source justification for the maintenance of these machines, NMRC did not solicit orders from other sources. The justification states that Life Technologies is the only organization that provides maintenance and repair services for the CYTKICK and ATTUNE NXT 4 LASER flow cytometry machines.

7. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer shall determine the anticipated cost to the Government of the supplies/services covered by this Justification and Approval will be fair and reasonable by conducting a price analysis before an award is made. In addition, the Government anticipates that the negotiated contract price will reflect a discount from the **Life Technologies Corporation's** commercial price list and will be determined fair and reasonable.

8. Description of the market survey conducted and the results, or a statement of the reasons a market survey was not conducted.

Sole Source justification was provided by ThermoFisher Scientific's Life Technologies (the original manufacturer of the two machines that we need serviced). For additional information, see points 5 and 6 above.

9. Other facts supporting the use of other than full and open competition.

The NMRC IDD lab had a previous preventative maintenance contract with Life Technologies Corporation (previous contract number: N3239824P0317). This contract was previously awarded for a net amount of \$25,589.50, and was awarded on 06/17/2024. The contract period lasted from 06/17/2024-06/16/2025.

10. Listing of Sources, if any, which expressed, in writing, an interest in the acquisition.

N/A

11. Statement of actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

NMRC IDD lab asked the manufacturing company if they offer a sole source justification for the maintenance of these machines. Since they provided the sole source letter, NMRC will accept that they are the only company that can provide this service.

12. Point of Contact:

The point of contact at the Naval Medical Research Command, Silver Spring, MD, regarding the contents of the sole source justification are the Contracting Officers in the Material Management Department (MMD) and can be reached by emailing usn.detrick.nmrc.mbx.mmd-contracts@health.mil.

TECHNICAL AND REQUIREMENTS CERTIFICATION REQUIRED

BY NAVSUP 4200.83 series

I certify that the facts and representations under my cognizance which are included in this justification and approval and which form a basis for this justification are complete and accurate.

Technical Cognizance

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Date

Title

Department/Command

Requirements Cognizance

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Date

Title

Department/Command

CONTRACTING OFFICER CERTIFICATION

I certify that this justification is accurate and complete to the best of my knowledge.

	(301) 319-7182	4/23/2025
Contracting Officer	Phone	Date